

Regulatory Compliance Assessment

Transport Canada Drone Regulations: Canadian Aviation Regulations Part IX

15 requirements mapped 3 operator profiles assessed 9 compliance gaps identified

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Regulatory framework	Canadian Aviation Regulations Part IX: Remotely Piloted Aircraft Systems
Requirements mapped	15 across registration, certification, airspace, distance, documentation, and BVLOS
Operator profiles assessed	3 recreational hobbyist, commercial photography, drone delivery
Compliance gaps identified	9 across all three profiles
Immediate action gaps	6 requiring resolution before next flight operation
Maximum combined penalty exposure	\$88,000 across all identified gaps
Most critical gap	BVLOS delivery operations without Special Flight Operations Certificate

Where This Started

I have been studying for my Transport Canada drone pilot certificate. The further I got into it the more I realized the rules are actually pretty complex. It is not just where you can fly. There are weight limits, certification levels, airspace categories, distance rules from people, and a whole separate set of rules if you want to fly beyond what you can see. I started mapping it all out to make sense of it. That turned into a full compliance analysis across three different types of drone operators.

This assessment maps 15 Transport Canada requirements from the Canadian Aviation Regulations Part IX against three realistic Canadian operator profiles and identifies every compliance gap along with the risk rating and remediation steps for each one.

The Regulatory Framework

Transport Canada regulates all drones weighing between 250 grams and 25 kilograms under the Canadian Aviation Regulations Part IX, which came into force on June 1 2019. The framework introduced a two-tier pilot certification system, mandatory drone registration, and specific rules for where, when, and how drones can be flown.

The rules are different depending on whether you are flying for recreation or for commercial purposes, how heavy the drone is, what airspace you are operating in, and whether you intend to fly beyond visual line of sight. Most Canadian drone operators particularly recreational users are not aware of all the rules that apply to them.

Transport Canada increased enforcement activity at parks, waterfronts, and urban flying locations in 2024. Fines are being issued for unregistered drones and uncertified pilots. Compliance gaps that previously carried low practical risk are now being actively pursued.

Requirement Summary

Req ID	Category	Requirement	Applies to	Max Penalty
REG-001	Registration	Drone registration required for 250g to 25kg	All operators	\$3,000
REG-002	Certification	Basic certificate required for recreational operators	Recreational	\$3,000
REG-003	Certification	Advanced certificate and flight review required for commercial near people	Commercial	\$5,000
REG-004	Operating limits	Maximum altitude 122 metres above ground level	All operators	\$25,000
REG-005	Operating limits	Visual line of sight required for Basic certificate holders	Basic certificate	\$25,000
REG-006	Airspace	Controlled airspace requires NAV CANADA authorization	All operators	\$25,000
REG-007	Distance	30 metre minimum from bystanders for recreational operators	Recreational	\$3,000
REG-008	Distance	Advanced certificate permits closer flight with safety measures	Advanced only	\$5,000
REG-009	No-fly zones	No flight within 5.6km of airports without authorization	All operators	\$25,000
REG-012	BVLOS	Special Flight Operations Certificate required for beyond visual line of sight	Commercial	\$25,000
REG-013	Night ops	Anti-collision lighting visible from 1km required for night flight	All operators	\$3,000

Req ID	Category	Requirement	Applies to	Max Penalty
REG-014	Insurance	Third party liability minimum \$100,000 for commercial near people	Commercial	\$5,000

The Three Operator Profiles

Profile 1: Weekend Hobbyist

Recreational user with a DJI Mavic 3 weighing 895 grams. Flies on weekends in public parks around Mississauga and occasionally near Lake Ontario. Has never registered the drone or taken the pilot exam. Occasionally flies at dusk.

This profile represents the most common type of drone operator in Canada. Most recreational users are flying in violation of at least two or three Transport Canada requirements without knowing it. The risks are real not theoretical.

4 compliance gaps identified for this profile. All 4 are Immediate priority. The operator is flying unregistered and uncertified which creates enforcement risk on every single flight they take.

Profile 2: Commercial Photography Business

Small business doing real estate and construction site aerial photography in the GTA using a DJI Phantom 4 Pro at 1,388 grams. Registered and insured. Holds a Basic certificate only. Regularly works within 30 metres of bystanders at job sites.

This is the profile that surprises most people. The business looks compliant on the surface they are registered, they have insurance, they have a certificate. But flying commercially within 30 metres of people requires an Advanced certificate, not Basic. Every job they do at a busy construction site is a compliance violation.

2 compliance gaps identified. Both are Immediate priority. The most important remediation is obtaining an Advanced certificate, which requires passing the Advanced exam and completing a flight review with an accredited organization.

Profile 3: Drone Delivery Pilot Program

Logistics company running a suburban delivery pilot in Brampton with a custom 7.2 kilogram delivery drone. Registered, Advanced certified, and properly insured. But delivery routes require the drone to travel beyond the visual line of sight of the operator and they have not applied for the required Special Flight Operations Certificate.

CRITICAL: BVLOS operations without an SFOC are illegal under CAR 901.70. Maximum penalty is \$25,000 and in the event of an incident this creates potential criminal liability. All beyond visual line of sight delivery routes must be suspended immediately until an SFOC is obtained from Transport Canada.

Risk Register Summary

Risk ID	Profile	Risk	Likelihood	Consequence	Rating	Max Penalty
RSK-001	Hobbyist	Flying unregistered drone	Medium	Medium	Medium	\$3,000
RSK-002	Hobbyist	Flying without pilot certificate	Medium	High	High	\$3,000
RSK-003	Hobbyist	Unauthorized controlled airspace flight near Billy Bishop Airport	High	Critical	Critical	\$25,000
RSK-004	Hobbyist	Night operations without required lighting	Medium	High	High	\$3,000
RSK-005	Photography	Commercial operations with wrong certificate level	High	High	High	\$5,000
RSK-006	Photography	Flying within 30m of bystanders on every commercial job	High	High	High	\$5,000
RSK-007	Delivery	BVLOS operations without SFOC — potential criminal liability	High	Critical	Critical	\$25,000
RSK-008	Delivery	Potential altitude exceedances creating airspace conflict	Medium	Critical	Critical	\$25,000

Recommendations

- Weekend Hobbyist: Register the drone at tc.canada.ca and complete the Basic Operations exam before the next flight. Both take under an hour. Download the NAV CANADA NAS app and check airspace on every flight. Stop all night operations until compliant lighting is installed.

- Commercial Photography Business: Prioritize obtaining the Advanced Operations certificate. Until then restrict all commercial jobs to locations where 30 metre bystander clearance is achievable. The Advanced exam and flight review should be completed within 30 days.
- Drone Delivery Operator: Halt all BVLOS delivery routes immediately. Apply for a Special Flight Operations Certificate through Transport Canada before resuming. Consider engaging a regulatory consultant to prepare the SFOC application, it requires a detailed safety case and operations plan.
- All operators: Monitor the Transport Canada website for regulatory updates, particularly the evolving framework for drone delivery corridors in Canadian cities which is expected to be finalized in 2026.

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Targeting	Regulatory Affairs, Compliance, and Business Analyst roles in transport, aerospace, and logistics
Series	The Portfolio Project